

# **Electrical Training Institute**

## **San Diego & Imperial Counties**

San Diego Electrical Joint Apprenticeship Training Committees'

### ***Rules, Regulations and Guidelines for Apprentices***



**Adopted November 2017**  
*(Revised March 31<sup>st</sup>, 2026)*

## TABLE OF CONTENTS

|                                                   |    |
|---------------------------------------------------|----|
| INTRODUCTION .....                                | 4  |
| I. GENERAL .....                                  | 5  |
| Probationary Period.....                          | 7  |
| Scholarship Loan Agreement.....                   | 7  |
| Duty of Truth.....                                | 8  |
| Current Address .....                             | 8  |
| Personal Appearance.....                          | 8  |
| Safety and Health Training .....                  | 9  |
| Computer Software .....                           | 9  |
| I.B.E.W. Union Membership .....                   | 9  |
| Qualification for Apprenticeship .....            | 10 |
| II. SCHOOL REQUIREMENTS .....                     | 16 |
| Academic .....                                    | 16 |
| Attendance .....                                  | 17 |
| Tardiness.....                                    | 18 |
| Make-up Tests.....                                | 19 |
| First Aid and Cardiopulmonary Resuscitation ..... | 19 |
| III. WORK REQUIREMENTS.....                       | 19 |
| Job Placement.....                                | 19 |
| Dispatching .....                                 | 19 |
| Rotation .....                                    | 20 |
| Employer Evaluations .....                        | 20 |
| Hours of Work .....                               | 20 |
| Quitting .....                                    | 20 |
| Job Attendance.....                               | 21 |
| Termination: from employer.....                   | 21 |
| Jurisdiction .....                                | 21 |

|                                                                                         |           |
|-----------------------------------------------------------------------------------------|-----------|
| Overscale Wages .....                                                                   | 21        |
| Non-Discrimination .....                                                                | 22        |
| <b>IV. WORK HOURS REQUIREMENTS .....</b>                                                | <b>22</b> |
| Advancement Requirements for Apprentices .....                                          | 22        |
| OJT Monthly Work Reports.....                                                           | 24        |
| Work Experience .....                                                                   | 24        |
| Temporary Training Opportunities .....                                                  | 25        |
| Advancement of Apprentices .....                                                        | 25        |
| <b>V. DISCIPLINE AND TERMINATION FROM THE PROGRAM.....</b>                              | <b>26</b> |
| Discipline .....                                                                        | 26        |
| Discipline Procedures.....                                                              | 26        |
| Use of Controlled Substances .....                                                      | 27        |
| Felony Conviction.....                                                                  | 27        |
| Termination from the Program .....                                                      | 28        |
| Termination Procedures .....                                                            | 28        |
| Adjustment of Differences: Cancellation or Resignation of Apprenticeship Agreement..... | 29        |
| Complaint Procedure.....                                                                | 30        |
| Recordkeeping Obligations of the JATC .....                                             | 32        |
| <b>VI. SUMMARY .....</b>                                                                | <b>32</b> |
| <b>ACCEPTANCE AND RECEIPT OF COPY .....</b>                                             | <b>33</b> |

## **INTRODUCTION**

The San Diego Electrical Joint Apprenticeship and Training Committee (JATC) is composed of eight members. Four represent the National Electrical Contractors Association (NECA) (858) 571-6322, and four represent the International Brotherhood of Electrical Workers (IBEW) (858) 569-8900. In addition, there is an advisor from Palomar College and a consultant from the State Division of Apprenticeship Standards (DAS) (619) 767-2045.

The JATC is operating under authority established in the Collective Bargaining Agreement between the IBEW and NECA and is charged with making local standards in conformity with the National Apprenticeship and Training Standards for the Electrical Contracting Industry governing the qualifications, selection, education, and training of all apprentices. The JATC shall also be responsible for training by the parties to this Agreement and shall be registered with the National Joint Apprenticeship and Training Committee and the appropriate State or Federal Apprenticeship Registration Agency.

The Electrical Joint Apprenticeship and Training Committee meets at 4:00 p.m. on the last Tuesday of each month and the Sound Technician Joint Apprenticeship Committee meets at 4:00 p.m. on the second Tuesday of each month. The Intelligent Transportation Systems Joint Apprenticeship and Training Committee meets at 4:00 p.m. on the third Tuesday of each month. Each committee meets at the San Diego Electrical Industry Building to exercise its responsibility to supervise the implementation of the Standards of Apprenticeship and to take any action necessary to protect the integrity of the apprenticeship program.

Apprentices are encouraged to contact the Administration Office when they encounter any problems or have any questions regarding the terms of their apprenticeship or related instruction.

## I. GENERAL

### A. DEFINITIONS

1. **DAS** means the Division of Apprenticeship Standards.
2. **DRUG POLICY** means the policy adopted by the JATC. A copy of said policy is given to all apprentices, as well as all applicants selected to enter the program.
3. **EMPLOYER ASSOCIATION** means those employer associations which have contractual relationships with the Local 569 of the I.B.E.W.
4. **INDIVIDUAL EMPLOYER** means any person or organization employing an apprentice whether or not such person or organization is a party to an apprenticeship agreement with the apprentice.
5. **JATC** means the Joint Apprenticeship Training Committee selected by the Employer Association (National Electrical Contractors Association, San Diego Chapter, Inc.), and the Union signatory hereto with equal representation as required by state law.
6. **OJT** means On-The-Job Training.
7. **OSHA** means Occupational Safety and Health Administration.
8. **PROBATIONARY PERIOD** means a defined period of time during which the apprenticeship agreement may be terminated by either party to the agreement upon written notice to the Registration Agency.
9. **REGISTERED APPRENTICE** means a person is covered by a written apprenticeship agreement with the JATC. The apprenticeship agreement shall be properly registered with the appropriate Registration Agency.
10. **REGISTERED APPRENTICE AGREEMENT** means a written agreement between an apprentice and his/her apprenticeship committee, which contains the terms and conditions of the employment and training of the apprentice.
11. **REGISTRATION AGENCY** means the Office of Apprenticeship or recognized State Apprenticeship Agency.
12. **RELATED INSTRUCTION** means an organized and systematic form of instruction designed to provide the apprentice with knowledge of the theoretical and technical subjects related to their trade.
13. **RULES AND REGULATIONS** means written rules and regulations adopted by the JATC.

14. **SPONSOR** means the JATC in whose name the local Standards of Apprenticeship are registered and that will be responsible for administering and operating the registered apprenticeship program.
15. **SUPERVISION OF REGISTERED APPRENTICES** means the function of the journeyman or person designated by the individual employer to supervise the training of apprentices on the job.
16. **SAN DIEGO ELECTRICAL TRAINING CENTER (SDETC)** means property with equipment and facilities used for the training purposes, designated and approved by the JATC. San Diego Electrical Training Trust is the entity in control of Trust funds (SDETT) governing SDETC. SDETT is doing business as **ELECTRICAL TRAINING INSTITUTE(ETI)**.
17. **TRAINING DIRECTOR** means the person appointed by the JATC to carry out the policies and procedures of the committee.
18. **UNION** means Local 569 of the International Brotherhood of Electrical Workers.

**B. THE REGISTERED APPRENTICE SHALL:**

1. Sign an apprentice agreement.
2. Perform diligently the work of the trade and pertinent duties as assigned by the individual employer.
3. Respect the property and equipment of the individual employer.
4. Report to the Training Director whenever the apprentice's individual employer is unable to, or does not, to provide the necessary on-the-job training hours in accordance with the training processes and training schedule, as set forth in the Rules and Regulations.
5. Attend the training as required and satisfactorily complete the Related Instruction training for the apprentice's branch of training as set forth in the Rules and Regulations. All apprentices shall be required to attend classes in subjects related to the branch in which they are registered. The scheduling of Related Instruction shall be at the direction of the JATC. Related Instruction shall not be considered hours of work as it applies to the term of apprenticeship and shall not be compensated for.
6. Follow the direction of the JATC and abide by its policies, procedures and rules and regulations, and sign acknowledgment of receipt of said policies, procedures and rules and regulations.
7. Furnish the required tools necessary to perform the work of an apprentice.

### C. Probationary Period:

Every applicant selected for apprenticeship will serve a probationary period. The probationary period cannot exceed 25 percent of the length of the program or 1 year, whichever is shorter.

1. Applicants selected for the **Inside Wireman (Electrician)** apprenticeship program will serve a probationary period of **2000 hours**.
2. Applicants selected for the **Residential Wireman** apprenticeship program will serve a probationary period of **1200 hours**.
3. Applicants selected for the **Sound Technician** apprenticeship program will serve a probationary period of **1600 hours**.
4. Applicants selected for the **Intelligent Transportation Systems (Street-Light Servicer)** apprenticeship program will serve a probationary period of **1600 hours**.

During this period the apprenticeship agreement may be canceled by either party without the formality of a hearing. The Office of Apprenticeship shall be notified of such cancellations. Furthermore, the Office of Apprenticeship shall be notified of any extension of the probationary period (documenting action taken to address the issue(s) involved) in lieu of terminating the apprenticeship agreement.

During the probationary period, the JATC shall make a thorough review of the apprentice's ability and development. Advanced standing for previous training or experience does not reduce the probationary period.

Applicants awarded advanced standing at the time of registration shall have their demonstrated skill, knowledge and overall performance evaluated during the probationary period. Adjustments to the assigned period of apprenticeship and/or level of related classroom training may be made during the probationary period, following appropriate reviews and evaluation by the JATC. Such reviews and determinations shall be properly documented and applied equally to all apprentices.

Prior to the end of the probationary period, action must be taken on each probationary apprentice to end the probation or cancel the apprenticeship agreement. All interested parties shall be notified of such action.

### D. Scholarship Loan Agreement

The Electrical Training Institute (ETI) will grant a Scholarship Loan for an amount calculated for the first year of apprentice's training and, subject to apprentice continuing to successfully complete the training program, the ETI will make further annual Scholarship Loans to apprentice for each of the remaining years of apprentice's participation in the Training program.

Each apprentice will be presented a complete and detailed copy of the Scholarship Loan Agreement along with the Promissory Note for the first year of apprenticeship. A signed acknowledgment and acceptance of the Scholarship Loan Agreement and its provisions, and the yearly re-signing of its accompanying Promissory Notes by the apprentice, are conditions of acceptance into, and continuation in, the electrical apprenticeship program.

## **E. Duty of Truth**

Falsification in the recording of information on application forms, monthly work report cards, forms or documents for the Joint Apprenticeship Committee, or information required by an employer are violations of the rules and will subject the offending apprentice to dismissal from the program.

## **F. Current Address**

The apprentice shall be required to keep the JATC advised of his/her current address, telephone number, and email address.

## **G. Personal Appearance**

Whether in a lab or lecture class, only proper attire shall be worn while attending school. It is imperative for your own personal protection and safety that proper attire be worn on the Electrical Training Institute property. When on school grounds or affiliated training sites, all students are required to wear clothing that would be acceptable to wear to work on a construction site during OJT. Proper clothing includes a short or long-sleeved shirt and long work pants or jeans. No personal areas should be visible, including the mid-section of the torso. Acceptable footwear includes sturdy work boots, or tennis shoes. All clothing shall be in good condition. Examples of prohibited footwear are sandals, slippers, open-toed shoes, platform boots, and crocs of any type. Examples of prohibited clothing are sleeveless, or tank top shirts, leggings, short pants, sweatpants, and one-piece clothing also known as "onesies." Clothing with vulgar, offensive, or provocative images / statements are also not allowed. Jewelry and piercings may need to be removed if determined to be a safety hazard. Anything considered inappropriate attire by the Training Director, and/or his designees, will also be prohibited. Depending on the circumstances and potential hazards present during lab instruction, additional PPE may be required. Any student reporting to class improperly attired will be sent home and marked absent for that day.

## **H. Safety and Health Training**

1. Apprentices are required to observe all safety rules as established by the industry. The employer shall instruct the apprentice in safe and healthful work practices and shall ensure that the apprentice is trained in facilities and other environments that are in compliance with either the Occupational Safety and Health Act standards promulgated by the Secretary of Labor under Public Law 91-596, dated December 29, 1970 and as amended by Public Law 101-552, dated November 5, 1990, or State, or local standards that have been found to be at least as effective as the Federal standards.
2. While on the jobsite, it shall be the responsibility of the Employer to provide the apprentice with a safe and healthful workplace and conditions of employment, and work assignments that the apprentice can safely perform.
3. The JATC shall see that all apprentices complete CPR/First Aid training during their probationary period. The JATC shall also attempt to see that graduates of its apprenticeship program possess a current CPR/First Aid card. NOTE: This training requires additional classroom hours.



4. The JATC shall see that each apprentice successfully completes the JATC, OSHA approved, Ten-Hour Construction Safety course, before beginning the Second Year of related instructional training. NOTE: There will be additional classroom time (estimated at 15 hours) needed to complete this training.

#### **I. Computer Software Policy**

The Copyright Law of the United States (Title 17, United States Code) governs the making of copies of copyrighted software. In addition to possible civil damages and criminal penalties, the JATC will suspend apprentices from the program for up to sixty days for unauthorized copying of software either from or to the Electrical Training Institute computers.

#### **J. I.B.E.W. Union Membership**

All apprentices shall be required to become and remain members, in good standing, of I.B.E.W. Local Union 569 as a condition of remaining in the apprenticeship program.

Those apprentices not satisfying their financial obligation to Local Union 569 of the I.B.E.W. may be suspended from the Union without notice. Upon Union notification to the JATC of the apprentice being suspended, the Apprenticeship Agreement may be cancelled, and the apprentice removed from the program.

#### **K. Qualification for Apprenticeship**

- A. Individuals may enter the pool of qualified applicants by any of the following means stated below. Every individual selected for apprenticeship shall come from this established pool, unless otherwise qualifying for one of the "direct entry" methods and shall serve the same probationary period required of all entering registered apprentices.

Individuals who enter the pool of qualified applicants or otherwise meet the provisions for "direct entry" will be provided with the opportunity to participate in the Traditional (time-based) program if openings are available. Final decisions regarding the placement of the apprentice into the program will be based upon several factors, including but not limited to the suitability of the applicant's experience and the needs of the Program Sponsor.

Individuals who can show that they meet the conditions in one or more of the means listed below will be afforded an oral interview or direct entry by the JATC. Once interviewed or approved for direct entry, an applicant shall remain active in the Apprentice Application Record Book (a.k.a. Pool of Eligible applicants list), subject to selection, for a period of two (2) calendar years from the date of interview or approval; unless they decline an offer, request to be removed from the list, or fail to qualify on applicable post-selection requirements (such as a drug screen), or they are approved for a re-interview following the date of their most recent interview.

- 1) To qualify for interview and ranking all applicants must:
- a. complete an application form, accurately responding to all questions and items including statements indicating that they are:
    - i. physically and mentally able to safely perform or learn to safely perform essential functions of the job either with or without reasonable accommodations. Individuals will be provided with reasonable accommodation as required by law, including the modification of equipment or devices or other appropriate adjustment or modifications of examinations or training materials as needed so long as it does not pose an undue hardship on the program sponsor.
    - ii. able to get to and from work at job sites anywhere within the geographical area that this apprenticeship program covers.
    - iii. able and willing to attend all related classroom training as required to complete their apprenticeship.
    - iv. able to climb and work from ladders, poles and towers of various heights.
    - v. able to crawl and work in confined spaces such as attics, manholes and crawlspaces.
    - vi. able to read, hear and understand instructions and warnings.
  - b. meet the minimum age requirement of 17 at the time of application (must provide evidence of minimum age respecting any applicable State laws or regulations). Applicant must be a minimum of 18 years of age at the time of selection and registration.
  - c. be at least a high school graduate, or have a GED, or in lieu of a high school diploma or GED, have a two-year Associate Degree or higher. This paragraph does not apply to the Residential Program.
  - d. show evidence of successful completion of: one full credit of high school algebra with a passing grade, or one post high school algebra course (e.g. Adult Education, Continuing Education, Community College, etc.) with a passing grade, or provide evidence of having successfully completed the NJATC Math Course, or of passing the internet-based Assessment and Learning in Knowledge Spaces (ALEKS) Math Prep for College Physics course with the final assessment taken under the supervision of an ETI instructor. This paragraph does not apply to the Residential program.
  - e. provide an official transcript(s) for high school and post high school education and training. All GED records must be submitted if applicable. (Note: schools shall be requested to obliterate reference to date of birth, years of attendance, graduation date, age, race, and sex, if required by State law or regulation.)
  - f. obtain a qualifying score of 4 using the electrical Industry's aptitude test developed and validated by the American Institutes for Research. This paragraph does not apply to the Residential Program.
  - g. possess a valid Driver's License.
  - h. submit a DD-214 to verify military training if they are a veteran.

- 2) Individuals who can verify (by providing undisputable documenting evidence) that they have worked a minimum of four thousand (4,000) hours specifically in the electrical construction industry, shall submit a written Industry recommendation and may qualify for direct interview as determined by the JATC if apprenticeship opportunities are available. The JATC will use standard means of evaluation (see Section X) for individuals who may qualify for direct entry or direct interview. To qualify under this provision, applicants must:
- a. complete an application form, accurately responding to all questions and items including statements indicating that they are:
    - i. physically and mentally able to safely perform or learn to safely perform essential functions of the job either with or without reasonable accommodations. Individuals will be provided with reasonable accommodation as required by law, including the modification of equipment or devices or other appropriate adjustment or modifications of examinations or training materials as needed so long as it does not pose an undue hardship on the program sponsor.
    - ii. able to get to and from work at job sites anywhere within the geographical area that this apprenticeship program covers.
    - iii. able and willing to attend all related classroom training as required to complete their apprenticeship.
    - iv. able to climb ladders, scaffolds, poles, and towers of various heights.
    - v. able to crawl and work in confined spaces such as attics, manholes and crawlspaces.
    - vi. able to read, hear and understand instructions and warnings.
  - b. provide to the JATC proper, undisputable documentation that defines their experience in the electrical construction industry. This documentation must be comprised of official documents such as tax/payroll records, notarized letters of experience confirmation and sworn statements. Such documentation must remain with the applicant's record. The IBEW will examine all documentation submitted to determine the qualification of the applicant, and the JATC will schedule an interview if needed. An absolute minimum of four thousand hours of ELECTRICAL CONSTRUCTION WORK EXPERIENCE must be proven to meet this qualification. No other form of electronic or electrical experience/training or construction experience will be given credit under this provision. If selected under this provision, the JATC will determine, using standard means of evaluation (see Section X), if OJT and/or related instruction credit will be awarded for previous training and experience.
  - c. sit for the electrical industry's aptitude test developed and validated by the American Institutes for Research.
  - d. possess a valid Driver's License.
  - e. submit a DD-214 to verify military training and/or experience if they are a veteran.

- 3) An electrical construction employee of a non-signatory employer not qualifying as a Journey worker when the employer becomes signatory, shall be evaluated by the JATC, using standard means of evaluation (see Section X), and registered at the appropriate period of apprenticeship based on previous work experience and related training. This is a method of direct entry. For such applicants to be considered, they must:
- a. complete an application form, accurately responding to all questions and items including statements indicating that they are:
    - i. physically and mentally able to safely perform or learn to safely perform essential functions of the job either with or without reasonable accommodations. Individuals will be provided with reasonable accommodation as required by law, including the modification of equipment or devices or other appropriate adjustment or modifications of examinations or training materials as needed so long as it does not pose an undue hardship on the program sponsor.
    - ii. able to get to and from work at job sites anywhere within the geographical area that this apprenticeship program covers.
    - iii. able and willing to attend all related classroom training as required to complete their apprenticeship.
    - iv. able to climb and work from ladders, poles, and towers of various heights.
    - v. able to crawl and work in confined spaces such as attics, manholes and crawlspaces.
    - vi. able to read, hear and understand instructions and warnings.
  - b. provide official, undisputable documentation to show that they were an employee performing electrical construction work prior to and at the time the employer becomes signatory.
  - c. supply the JATC with required reliable documentation and adequate verification to substantiate previous employment and experience to warrant their registration.
  - d. deserve advanced standing based upon evaluation by the JATC (see Section X).  
sit for the electrical industry's aptitude test developed and validated by the American Institutes for Research.
  - e. possess a valid Driver's License.
  - f. submit a DD-214 to verify military training and/or experience if they are a veteran.
- 4) Transfer of Apprenticeship: In order to transfer an apprenticeship agreement between two local IBEW/NECA JATCs having a registered inside apprenticeship program, the following requirements must be met. This is a method of direct entry.
- a. The apprentice must submit a written request for transfer, describing in detail the needs and reasons upon which the request is based.
  - b. The apprentice's sponsoring JATC must agree to the transfer, acting on behalf of the official program sponsors for the IBEW and NECA.

- c. The receiving JATC must agree to accept the transfer, acting on behalf of the official program sponsors for the IBEW and NECA.
- d. The receiving JATC shall have complete access to all apprenticeship records pertaining to the transferring apprentice.
- e. The transferring apprentice must:
  - i. complete an application form.
  - ii. provide to the JATC official documentation pertaining to their participation in the apprenticeship program from which they are transferring. An official copy of all records established with the sponsoring JATC (including a copy of the application form and the apprenticeship agreement—properly registered with the Registration Agency) and other information submitted shall be provided to the receiving JATC. The receiving JATC will examine all documentation submitted before granting permission to transfer. All such records shall become part of the receiving JATC's permanent files.
  - iii. upon being accepted by the receiving JATC, have their existing apprenticeship agreement terminated.
  - iv. have registration proceedings initiated immediately by the receiving JATC and the appropriate Registration Agency. The Registration Agency will be provided with all documentation necessary and/or required to verify that the transfer is justifiable.
- f. possess a valid Driver's License.
- g. submit a DD-214 to verify military training and/or experience if they are a veteran.

Those accepted for transfer while registered in an IBEW/NECA inside apprenticeship program will be evaluated to determine where they will be slotted into the program.

## **5) Not used.**

- 6) An individual who signs an authorization card during an organizing effort—wherein Fifty (50) percent or more of the employees have signed authorization cards, whether or not the employer becomes signatory—and is an employee of the non-signatory electrical contractor and does not qualify as an IBEW Inside Journey worker Wireman, shall be evaluated by the JATC, using standard means of evaluation (see Section X), and registered at the appropriate period of apprenticeship based on previous work experience and related training. This is a method of direct entry. All employees of the non-signatory electrical contractor must have been offered the opportunity to sign authorization cards. For such applicants to be considered, they must:
  - a. complete an application form, accurately responding to all questions and items including statements indicating that they are:
    - i. physically and mentally able to safely perform or learn to safely perform essential functions of the job either with or without reasonable accommodations. Individuals will be provided with reasonable accommodation as required by law, including the modification of equipment or devices or other appropriate adjustment or modifications of examinations or training materials as needed so long as it does not pose an undue hardship on the program sponsor.

- ii. able to get to and from work at job sites anywhere within the geographical area that this apprenticeship program covers.
- iii. able and willing to attend all related classroom training as required to complete their apprenticeship.
- iv. able to climb and work from ladders, poles, and towers of various heights.
- v. able to crawl and work in confined spaces such as attics, manholes and crawlspaces.
- vi. able to read, hear and understand instructions and warnings.
- b. have previous work experience (with non-participating employer(s)) that warrants some OJT credit, based on the provision of these Standards (see Section X).
- c. provide reliable documentation and adequate verification (which shall be recorded and securely filed in the applicant's file) to substantiate previous employment and experience, in order to qualify for direct entry under this provision.
- d. provide official documentation to show length of employment with present electrical employer and all other previous electrical employers.
- e. possess a valid Driver's License.
- f. submit a DD-214 to verify military training and/or experience if they are a veteran.

## **7) Not Used**

- 8) An honorably discharged military veteran may qualify for direct interview (must apply within five (5) years from the discharge date) if opportunities are available. If selected under this provision, the JATC will determine, using standard means of evaluation (see Section X), if OJT and/or related instruction credit will be awarded for previous training and experience. Applicants who have served overseas and/or lived on base for a minimum of two (2) years prior to application will have any existing residency restriction waived. To qualify under this provision, applicants must:
- a. complete an application form, accurately responding to all questions and items including statements indicating that they are:
    - i. physically and mentally able to safely perform or learn to safely perform essential functions of the job either with or without reasonable accommodations. Individuals will be provided with reasonable accommodation as required by law, including the modification of equipment or devices or other appropriate adjustment or modifications of examinations or training materials as needed so long as it does not pose an undue hardship on the program sponsor.
    - ii. able to get to and from work at job sites anywhere within the geographical area that this apprenticeship program covers.
    - iii. able and willing to attend all related classroom training as required to complete their apprenticeship.

- iv. able to climb and work from ladders, scaffolds, poles, and towers of various heights.
- v. able to crawl and work in confined spaces such as attics, manholes and crawlspaces.
- vi. able to read, hear and understand instructions and warnings.
- b. provide reliable documentation and adequate verification (which shall be recorded and securely filed in the applicant's file) to substantiate previous military training and experience (DD-214).
- c. possess a valid Driver's License.
- d. submit a DD-214 to verify military training and/or experience if they are a veteran.

**9) Not used**

**10) Not used**

- 11) Individuals who can verify that they have completed a structured pre-apprenticeship training program meeting minimum requirements established by the NJATC and recognized by the JATC and sponsored by community outreach groups, or by the IBEW, NECA, or by the Local, State, Regional or National Building Trades programs, or by the JATC; may qualify for either direct interview or direct entry; as determined by the JATC and available apprenticeship opportunities. The JATC using standard means of evaluation (see Section X) will determine direct entry or direct interview. To qualify under this provision, applicants must:
- a. complete an application form, accurately responding to all questions and items including statements indicating that they are:
    - i. physically and mentally able to safely perform or learn to safely perform essential functions of the job either with or without reasonable accommodations.
    - ii. able to get to and from work at job sites anywhere within the geographical area that this apprenticeship program covers.
    - iii. able and willing to attend all related classroom training as required to complete their apprenticeship.
    - iv. able to climb and work from ladders, scaffolds, poles, and towers of various heights.
    - v. able to crawl and work in confined spaces such as attics, manholes and crawlspaces.
    - vi. able to read, hear and understand instructions and warnings.
  - b. meet the minimum age requirement of 17 at the time of application.
  - c. Provide to the JATC proper, undisputable documentation confirming that they meet the specific requirements of the pre-apprenticeship program. This documentation must be comprised of official documents such as completion/graduation certificates, transcripts, notarized letters of confirmation and sworn statements. Such documentation must remain with the applicant's record. The JATC will examine all documentation submitted to determine qualification of the applicant. The JATC will schedule an experience evaluation interview with the applicant if it is deemed appropriate.
  - d. sit for the electrical industry's aptitude test developed and validated by the American Institutes for Research.

- e. obtain a qualifying score of 4 using the electrical industry's aptitude test developed and validated by the American Institutes for Research.
  - f. possess a valid Driver's License.
  - g. submit a DD-214 to verify military training and/or experience if they are a veteran.
- B. Applicants selected for apprenticeship shall be employed only by participating (signatory) employers upon becoming registered.
  - C. Qualified applicants interviewed and selected for apprenticeship under these Standards who have previously completed another IBEW/NECA apprenticeship will be awarded a minimum of three thousand, five hundred (3,500) hours of OJT credit. Such individuals will be properly evaluated by the JATC and placed in the appropriate year of related training (see Section X).
  - D. All selected applicants (including direct entry) must provide the documentation specified to complete their application. Regardless of how one qualifies for apprenticeship, following selection, but prior to registration, ALL individuals being offered an apprenticeship will qualify on a drug- screen test. The cost of the test is to be borne by the JATC. Selected applicants, other than active/reserve duty military applicants, must be available for work within one month of the orientation date. Failure of a selected applicant to be available for dispatch within one month of their official orientation date will be considered failing to qualify, the offer of apprenticeship will be withdrawn, and they will be removed from the pool of eligible applicants.
  - E. The JATC's Drug Policy is a part of its official Rules and Policies. Applicants shall be notified that such a policy exists and given an opportunity to review it.

## **II SCHOOL REQUIREMENTS: All learning assignments must be performed satisfactorily.**

### **A. Academic**

Apprentices must maintain a passing grade of **seventy-five percent (75%)** or better in accordance with the policy established by the Committee. Additionally, classes which utilize a hands-on final for evaluating students as part of the grading scale, require a score of 75% or greater on the hands-on final to be considered passing. To clarify, if a class has a hands-on final assessment, the hands-on final score as well as the overall average score for the class (based on the class grading scale) must be 75% or greater to be considered passing the class. Failure of an apprentice to maintain a seventy-five percent (75%) average for the entire semester or failing a hands-on final will result in the Committee taking one or more of the following actions (see below). For further clarification refer to the Progressive Disciplinary Actions Policy.

1. The apprentice will be terminated from the program.
2. The apprentice will be required to repeat the semester at his/her current pay rate. The apprentice will be required to sign and adhere to a Semester Repeat Agreement. A repeat semester will be allowed only once during the term of apprenticeship.
3. The apprentice will be granted a time extension to complete the course requirements at his/her current pay rate.



## B. Attendance

Classroom instruction and on-the-job training are equally vital and important parts of the total educational process in apprenticeship. Therefore, attendance at all class sessions is mandatory to successfully complete the program. Arriving late to class, returning late from a break, or leaving class early by more than 30 minutes is considered an absence. Any student who fails to sign the attendance roster, at the end of any class, will be considered absent from that class. It is the responsibility of the student to ensure they have signed the attendance roster before leaving. The required semester materials balance fee must be paid in full by the individual taking the class within fourteen (14) calendar days of the official semester start date as stated in the student's class notification letter (for example, if the semester begins on September 8th, payment must be completed no later than September 22nd). Beginning with the first class session after the 14-day deadline, the student will not receive credit for attendance until the required semester materials balance fee is paid in full (these absences are not eligible to be excused and will be considered unexcused). Scholarship Loan Agreements and Promissory Notes are required to be signed on an annual basis. Failure to sign and return the annual agreements by the return date will result in unexcused absences until agreements are signed and returned. For further clarification please refer to the Progressive Disciplinary Actions Policy.

1. Absences within a semester shall subject the apprentice to each of the following penalties:
  - a. **First absence** = 1 make-up class
  - b. **Second absence** = 1 make-up class
  - c. **Third absence** = 21 hr. suspension and 1 month reate withheld.
  - d. **Fourth absence** may result in termination from the program or repeat the semester, at the discretion of the JATC.
2. If a medical leave of absence is required, military leave is requested or severe personal problems or circumstances beyond the control of the apprentice occur during a semester, (i.e., a death in the immediate family or severe illness resulting in hospitalization) the student must notify the Training Director/JATC in writing immediately, using the student request form to clarify their request, and provide supporting documentation. The student's request will be reviewed for a determination of the student's status regarding their leave of absence request or excused absence request. If a medical leave of absence is requested, the apprentice must comply with the Medical Leave of Absence Policy and submit their completed student request form.
  - a. Appropriate documentation must be submitted with the student **request form within two weeks of the absence.**
  - b. If the absence is excused, it will not count to the three-absence rule for suspension.
3. **All absences**, including excused absences, must be made up unless the

apprentice is specifically notified otherwise in writing. Make-up classes consist of evening classes during the school week, approved NECA/IBEW events, and classes of related instruction at the Electrical Training Institute, or as assigned by the Training Director or his/her designee.

4. All absences must be made up **within 59 days** from the date absences were incurred. All makeup classes will be done during the school week in no less than **3 ½ hours** increments beginning at **4:30PM**. Failure to do so will result in a 7-hour suspension to be served at the Electrical Training Institute on two (2) Friday evenings from 4:30PM-8PM, credited as one makeup. Any open absence **exceeding 118 days open**, will result in a show cause for “failure to makeup absences and suspensions in a timely manner”, and may result in cancellation of apprenticeship agreement.
5. Make-up classes, including make-up classes for suspensions, must be scheduled by the apprentice no later than twenty-four hours prior to the make-up class. It is the student’s responsibility to sign up for make-up classes either through ATS or by contacting the administration office at [info@sdeett.org](mailto:info@sdeett.org). Make-up classes, including make-up classes for suspensions, will be held on Fridays at the Electrical Training Institute, in no less than three and a half hour increments beginning at 4:30PM. NECA/IBEW Approved events may be used as a make-up class, if an “Event for Make-up” form is filled out and signed by the responsible representative onsite, at the event. The hours for Event for Make-up forms should be filled in by the onsite representative in three and a half hour increments. A NECA/IBEW Approved event for Make-up does not require the student to schedule the make-up twenty-four hours in advance. A NECA/IBEW Approved event for Make-up is not subject to the penalties described in bullet (6.). The student is required to notify the administration of their intent to attend the approved event. A completed Event for Make-up form with an authorized representatives’ signature is required or no credit will be given. The authorized representatives will be determined by NECA/IBEW and verified by the Electrical Training Institute administration staff.
6. Failure to attend a scheduled make-up class or suspension without cancelling prior to the deadline will result in an additional absence for each occurrence, which may result in withheld rates, unless determined otherwise by the Training Director and/or the JATC. All cancellations must occur prior to 12:00 P.M. on the day of the make-up class or suspension in question. Cancellations may be processed by contacting the administration office at [info@sdeett.org](mailto:info@sdeett.org) or by calling 858-569-6633.
7. Failure to comply with the above policy will be grounds for termination from the program.
8. All apprentices attending classes in San Diego and working in the Imperial Valley during inclement weather must advise the Electrical Training Institute if the California Highway Patrol has posted travelers advisory

warnings. If the road is determined too dangerous to travel, the class(es) will be rescheduled.

9. Total absences for one semester will be limited to 6 (this includes excused absences). If, a student exceeds six absences during one semester, the student will be withdrawn from the semester. The student will be enrolled in the following semesters class unless determined otherwise by the JATC.

### **C. Tardiness**

Tardiness is defined as arriving late to class, returning late from a break, or leaving class early by 30 minutes or less. Arriving late to class, returning late from a break, or leaving class early by more than 30 minutes is considered an absence.

1. When an apprentice accumulates two tardies, it will be counted as an absence.
2. Any apprentice accumulating six or more tardies during a semester shall appear before the Committee for appropriate disciplinary action as set forth in the Progressive Disciplinary Actions Policy.

### **D. Make-up Tests**

An apprentice who does not take a test/quiz because he/she was absent the night the test/quiz was given may request permission of the instructor to take a "make-up" test/quiz covering the subject matter.

1. The student must make an appointment to come in and makeup any missed tests/quizzes. A date and time must be scheduled in advance, which is prior to the next lecture class. The student will have a total of seven (7) calendar days, from the date of the missed class to makeup the tests/quizzes. In the event that the seventh calendar day falls on a holiday, an additional day will be permitted, not to exceed eight (8) calendar days. Makeup tests and quizzes will only be scheduled within normal business hours of the training institute. The student must make up the test/quiz on their own time, the makeup test/quiz cannot be taken during the students regularly scheduled classes. Any test/quiz which is not made up in time will receive a zero percent grade.

### **E. First Aid and Cardiopulmonary Resuscitation**

Each first-year apprentice shall be required to be certified in Multi-Media First Aid and Cardiopulmonary Resuscitation. All apprentices must maintain active certification in Multi-Media First Aid, Cardiopulmonary Resuscitation and OSHA 10-hour training. The classes will be provided by ETI at a time which does not conflict with other related training classes.

## **III. WORK REQUIREMENTS: All work assignments must be performed satisfactorily.**

### **A. Job Placement**

Apprentices shall be placed with employers only by the Committee or its agents. The Committee

may remove an apprentice from an employer at any time.

## **B. Dispatching**

An apprentice must register as "available for work" at the union hall no later than 10 AM on the workday following the day that he/she becomes unemployed. Termination slips must be presented by the apprentice.

1. Upon presenting the termination slip, the apprentice will be required to fill out and abide by the "Apprentice Out of Work Instruction" form to indicate telephone numbers where he/she can be reached. All apprentices will be called as soon as a job becomes available for them. Any request to be unavailable for work that is longer than two weeks (14 days) in duration shall be presented to the JATC for approval. All requests must use the student request form. Any request to extend the student's availability date past their original JATC approved date must be presented to the JATC at the next scheduled JATC meeting prior to the expiration of their original JATC approved date. Any request presented that does not afford adequate time to be able to be approved by the JATC will not be entertained.
2. An apprentice shall accept the job referral made by the dispatcher without debate. Any violation of the above shall be subject to discipline by the committee as set forth in the Progressive Disciplinary Actions Policy.

## **C. Rotation**

The Committee recommends that the apprentice pursue a diversity of training experiences throughout their apprenticeship. Please refer to the ETI Apprentice Rotation Policy for further clarification.

## **D. Employer Evaluations**

Job performance evaluation sheets will be sent to the apprentice's employers every six months and upon termination from an employer. These evaluations are reviewed by the Committee and Training Director as ongoing indicators of the apprentice's work progress. A poor contractor evaluation is any evaluation marked "NO" next to "Does apprentice demonstrate skills, knowledge, and ability equal to or greater than other apprentices at the same pay rate?" and/or receives a mark in a column under "needs improvement" and/or "unsatisfactory". Should an apprentice receive a poor contractor evaluation, the Training Director may notify the named apprentice to appear before the JATC at its next scheduled meeting. Reference the Progressive Disciplinary Action Policy (PDAP) for further clarification.

## **E. Hours of Work**

1. The apprentice shall work the hours that are specified in the local CBA. The apprentice's work shall not interfere with attending related instructional classes.

The JATC shall make all OJT assignments, reassignments, and transfers as stipulated in the CBA-ensuring adequate training and employment opportunities. Should the current employer be unable to provide the apprentice full employment on a reasonably continuous basis in the work processes outlined in these Standards, the apprentice may be transferred or reassigned to another participating employer as determined by the JATC.

2. In the event that the JATC is unable to provide an eligible apprentice and an on-the-job training assignment, apprentices may seek temporary employment outside of the electrical construction industry. Regardless of employment status, apprentices must continue to report for their regularly scheduled related instructional classes. Additionally, apprentices shall remain at all times subject to immediate call by the JATC for an on-the-job training assignment given by the JATC. Under NO CIRCUMSTANCES shall a participating employer be denied the assignment of an apprentice due to an apprentice temporarily working outside the Collective Bargaining Agreement. Failure to immediately comply with instructions to return to the JATC for an on-the-job training assignment may result in termination of the apprentice's apprenticeship agreement.

#### **F. Quitting**

An apprentice shall not quit an employer for any reason. If an apprentice experiences difficulty, he/she should contact the Training Director, and, if desired, request to appear before the Committee. A request by an apprentice to his/her employer to be laid off shall be considered a quit.

#### **G. Job Attendance**

Apprentices are required to report to the job on time each day work is scheduled.

1. An apprentice's poor attendance and/or tardiness on the job will be reviewed by the Committee and may result in disciplinary action by the Committee as set forth in the Progressive Disciplinary Actions Policy.
2. An apprentice who is unable to report for work as scheduled shall notify the employer or his/her representative as soon as possible.

#### **H. Termination from Employer**

An apprentice terminated for cause by the employer cannot be dispatched or placed on an out of work list until counseled and may be required to appear before the Committee at the next scheduled meeting of the Committee, as set forth in the Progressive Disciplinary Actions Policy. An apprentice violating the work requirements may be terminated from the program. If an apprentice receives an "ineligible for rehire" layoff from an employer, they will not be sent back to that employer for the remainder of their apprenticeship.

## **I. Jurisdiction**

An apprentice shall not work outside the jurisdiction of Local Union 569 without prior permission of the JATC and parties to the Agreement. Work hours accumulated by working outside the jurisdiction will not be credited toward graduation requirements for this program, unless approved by the JATC.

## **J. Over scale Wages**

Under no circumstances shall an apprentice receive more pay than that specified for his/her apprenticeship period under the bargaining agreement. Payment of over scale wages to an apprentice will result in one or more of the following Committee actions:

1. Over payment of wages will be reimbursed by apprentice.
2. Apprentice will be rotated to another employer.
3. Other action may be taken by the Committee depending on the circumstance of the case.

## **K. Non-Discrimination**

Apprentices must not discriminate, harass, intimidate or retaliate against any apprentices, staff or other persons associated with the Apprenticeship program because of their race, color, religion, national origin, or sex (including pregnancy and gender identity), gender expression, sexual orientation, genetic information, medical condition, marital status, political affiliation, ancestry, age (40 or older), military and veteran status or because they are an individual with a disability, or request for family care leave. All apprentices are required to participate in an equal opportunity policy orientation and periodic information sessions as well as anti-harassment and anti-discrimination training course.

# **IV. WORK HOURS REQUIREMENTS: Standards Set By JATC**

## **A. Advancement Requirements for Apprentices**

The Apprenticeship Standards adopted by the Committee and approved by the Division of Apprenticeship Standards require that eight thousand work hours for inside wireman apprentices, six thousand four hundred hours for sound technician apprentices, six thousand four hundred hours for intelligent transportation systems apprentices, and forty-eight hundred work hours for residential wireman apprentices shall be the standard term of apprenticeship. In no case shall an apprentice be advanced to journeyman status with less than the required work hours listed above. In addition to the minimum work hours required above, the wireman apprentices shall have satisfactorily completed ten semesters of classroom instruction, sound technician apprentices shall have satisfactorily completed eight semesters of classroom instruction, intelligent transportation systems apprentices shall have satisfactorily completed eight semesters of classroom instruction, and residential wireman apprentices shall have satisfactorily completed six semesters of classroom instruction.

1. Work hours accumulated in excess of the standard for rerate in any rerate period may be added to hours in a subsequent rerate period to meet the work hour requirements as noted in the schedule.
2. The term of apprenticeship shall consist of a minimum of ten periods for inside wiremen, eight periods for sound technicians, eight periods for intelligent transportation systems apprentices, and six periods for residential apprentices. Advancements requires satisfactory performance in related studies and on the job; total hours reported by the apprentice; the amount of school completed; elapsed time; possession of a current CPR/First Aid card; current Anti-Harassment certification on file that meets state and federal requirements; completion of required supplemental classes, makeups and suspensions; completion of an OSHA 10 course; work reports are current and up-to-date with the Trust office; favorable employer evaluations and any penalties incurred and served.
3. Rate/pay level advancements for eligible apprentices will be processed on Fridays during regular office hours. Apprentices must meet all eligibility requirements for advancement before **7:00 a.m. on Friday morning** in order to be advanced that day. Apprentices who complete the eligibility requirements after 7:00 a.m. on Friday, or at any time Saturday through Thursday, and remain eligible, will be advanced the following Friday.

The following represents **minimum** requirements for apprentice advances in rate:

| To Advance |    | An inside wireman apprentice must have |   |                            |   |                      |
|------------|----|----------------------------------------|---|----------------------------|---|----------------------|
| From       | To | Minimum Accumulative OJT Hours         | + | Related Training Completed | + | Elapsed Time         |
| 1          | 2  | 800                                    | + | Satisfactory Progress      | + | N/A                  |
| 2          | 3  | 1600                                   | + | 1st year, 2nd semester     | + | N/A                  |
| 3          | 4  | 2400                                   | + | Satisfactory Progress      | + | 6 months at Period 3 |
| 4          | 5  | 3200                                   | + | 2nd year, 2nd semester     | + | 6 months at Period 4 |
| 5          | 6  | 4000                                   | + | Satisfactory Progress      | + | 6 months at Period 5 |
| 6          | 7  | 4800                                   | + | 3rd year, 2nd semester     | + | 6 months at Period 6 |
| 7          | 8  | 5600                                   | + | Satisfactory Progress      | + | 6 months at Period 7 |
| 8          | 9  | 6400                                   | + | 4th year, 2nd semester     | + | 6 months at Period 8 |
| 9          | 10 | 7200                                   | + | Satisfactory Progress      | + | 6 months at Period 9 |
| 10         | JW | 8000                                   | + | 5th year, 2nd semester     | + | N/A                  |

| To Advance |     | A sound technician apprentice must have |   |                                 |   |                                     |
|------------|-----|-----------------------------------------|---|---------------------------------|---|-------------------------------------|
| From       | To  | Minimum Accumulative OJT Hours          | + | Related Training Completed:     | + | Elapsed Time Needed for Advancement |
| 1          | 2   | 800                                     | + | 1 <sup>st</sup> Semester School | + | N/A                                 |
| 2          | 3   | 1600                                    | + | 2 <sup>nd</sup> Semester School | + | N/A                                 |
| 3          | 4   | 2400                                    | + | 3 <sup>rd</sup> Semester School | + | 6 months at Period 3                |
| 4          | 5   | 3200                                    | + | 4 <sup>th</sup> Semester School | + | 6 months at Period 4                |
| 5          | 6   | 4000                                    | + | 5 <sup>th</sup> Semester School | + | 6 months at Period 5                |
| 6          | 7   | 4800                                    | + | 6 <sup>th</sup> Semester School | + | 6 months at Period 6                |
| 7          | 8   | 5600                                    | + | 7 <sup>th</sup> Semester School | + | 6 months at Period 7                |
| 8          | JST | 6400                                    | + | 8 <sup>th</sup> Semester School | + | N/A                                 |

| To Advance |      | An intelligent transportation systems apprentice must have |   |                                 |   |                                     |
|------------|------|------------------------------------------------------------|---|---------------------------------|---|-------------------------------------|
| From       | To   | Minimum Accumulative OJT Hours                             | + | Related Training Completed:     | + | Elapsed Time Needed for Advancement |
| 1          | 2    | 800                                                        | + | 1 <sup>st</sup> Semester School | + | N/A                                 |
| 2          | 3    | 1600                                                       | + | 2 <sup>nd</sup> Semester School | + | N/A                                 |
| 3          | 4    | 2400                                                       | + | 3 <sup>rd</sup> Semester School | + | 6 months at Period 3                |
| 4          | 5    | 3200                                                       | + | 4 <sup>th</sup> Semester School | + | 6 months at Period 4                |
| 5          | 6    | 4000                                                       | + | 5 <sup>th</sup> Semester School | + | 6 months at Period 5                |
| 6          | 7    | 4800                                                       | + | 6 <sup>th</sup> Semester School | + | 6 months at Period 6                |
| 7          | 8    | 5600                                                       | + | 7 <sup>th</sup> Semester School | + | 6 months at Period 7                |
| 8          | JSLT | 6400                                                       | + | 8 <sup>th</sup> Semester School | + | N/A                                 |

| To Advance |    | A residential wireman apprentice must have |   |                                       |   |                      |
|------------|----|--------------------------------------------|---|---------------------------------------|---|----------------------|
| From       | To | Minimum Accumulative OJT Hours             | + | Related Training Completed            | + | Elapsed Time         |
| 1          | 2  | 800                                        | + | Satisfactory Progress                 | + | N/A                  |
| 2          | 3  | 1600                                       | + | 1 <sup>st</sup> Year School Completed | + | N/A                  |
| 3          | 4  | 2400                                       | + | Satisfactory Progress                 | + | 6 months at Period 3 |
| 4          | 5  | 3200                                       | + | 2 <sup>nd</sup> year School Completed | + | 6 months at Period 4 |
| 5          | 6  | 4000                                       | + | Satisfactory Progress                 | + | 6 months at Period 5 |
| 6          | RW | 4800                                       | + | 3 <sup>rd</sup> year School Completed | + | 6 months at Period 6 |



## **B. OJT Monthly Work Reports**

Apprentices are required to maintain their OJT Monthly Work Reports.

1. Monthly work card reports are due the 1st of the month and delinquent after the 15th of each month.
2. The work reports must be submitted to the Trust Office with the work process category totals and overall total completed before the apprentice pay increase will be evaluated. In the event an apprentice has zero (0) hours for the month, regardless of the circumstance, the apprentice must still submit a work report.
3. Pay increases will not be evaluated until the completed OJT work reports are submitted by the apprentice. Under no circumstances will retroactive pay be approved if an apprentice turns in the work report late.
4. The OJT work reports are an official record and the property of the JATC. Falsification of OJT hours will result in disciplinary action by the JATC, as set forth in the Progressive Disciplinary Actions Policy up to and including removal from the apprenticeship program.

## **C. Work Experience**

1. All work (OJT) shall be performed under the supervision of a Journeyman Wireman, Residential Wireman, or Sound Technician. Supervision will not be of such nature as to prevent the development of responsibility and initiative. Work may be laid out by the employer's designated supervisor based on the apprentice's skills and ability to perform the job tasks, after which the apprentice shall be permitted to perform job tasks in order to develop job skills and trade competencies.
2. Apprentices with a minimum of 6,500 hours of OJT who have successfully completed the Fourth Year of related instruction Inside Wireman or 3,200 hours of OJT who have successfully completed the Second Year of related instruction Residential Wireman, may be permitted to perform electrical construction work without the direct supervision of a Journeyman as follows: while the apprentice's supervising Journeyman Wireman must be present on the jobsite, such apprentice may be assigned to independently perform job tasks at the jobsite consistent with the apprentice's skills, knowledge and ability to perform the work as determined by the employer.
3. An apprentice shall not supervise the work of any other apprentice or workers of any other classification.

#### **D. Temporary Training Opportunities**

Apprentices may be permitted to receive OJT and related training on a temporary basis with another IBEW/NECA JATC, provided the two JATCs, their representative parent organizations and the apprentice agree on such assignment. Before apprentices are given a temporary OJT assignment, they must supply the host JATC with an official copy of their apprenticeship agreement-clearly indicating that it has been properly registered with the applicable Registration Agency. Apprentices shall remain subject to reassignment by the JATC with whom they are indentured. Failure to immediately comply with such instruction to return to the JATC with whom they are indentured may result in the termination of the apprentice's apprenticeship agreement; in which case, they would no longer be employable under the CBA in the jurisdiction.

#### **E. Advancement of Apprentices**

1. Every four months during the first year of apprenticeship, and yearly thereafter, the JATC shall examine the progress of the apprentice on the job and in related instruction. The JATC will also receive a monthly OJT training report showing the experience and training in the various work processes acquired by the apprentice and evaluating the apprentice.
2. The JATC shall evaluate the apprentice's overall performance and accomplishments at the end of each period. Action must be taken on each apprentice to approve advancement, extend present rating for a specified probationary period, or cancel the apprenticeship agreement, with due notice to the apprentice and a reasonable opportunity for corrective action. Proper documentation shall be maintained of all action taken by the JATC.

### **V. DISCIPLINE AND TERMINATION FROM THE PROGRAM**

#### **A. Discipline**

When an apprentice fails to fulfill his/her obligations, either on the job or in school, then, "Shelley/Maloney", the law which governs apprenticeship in California, empowers the JATC to administer discipline including, (1) the power to suspend employment for a fixed period not to exceed sixty days, or (2) for good and sufficient reason, take steps to have the Apprenticeship Agreement canceled by the Administrator of Division of Apprenticeship Standards for the State of California.

The Committee reserves the right to act in extraordinary situations in which an apprentice's conduct outside of class or off-the-job, such as criminal behavior, might be disruptive to or interfere with classroom training, OJT or other aspects of the program; poses a risk to the health, safety or security of others; might tend to adversely affect the reputation of the Committee, contractors, the IBEW, NECA or the industry; or would likely interfere with the apprentice's ability to be employed by contractors. Normally, the Committee will only take action against off-duty conduct if it has such a nexus to the program, but the Committee reserves the discretion to take action based on any conduct that renders the apprentice unfit to remain in the program or become a Journeyman electrical worker.

## B. Discipline Procedures

Historically, the vast majority of apprentices have gone through this program in an orderly manner with little or no problems. The intent of the Joint Apprenticeship Training Committee is to bring uniformity to the disciplinary process for violations of apprenticeship policies. With this in mind, the Progressive Disciplinary Actions Policy will be followed.

1. Penalties up to and including removal from the apprenticeship program may be assessed for any violation or any combination of violations of apprenticeship policies. The apprentice's entire record will be reviewed prior to any recommended penalties being assessed.
2. The Electrical Training Trust may administer progressive discipline approved by the JATC as follows:
  - a. Written and verbal reprimand to apprentice file
  - b. Withholding a rerate for a period of time as determined by the JATC
  - c. Serious or continued violation of the apprenticeship policies at any time during the course of the apprenticeship program may result in the immediate suspension or a request to the Training Director for removal from the program. **Depending on the severity of the infraction, this step may be taken with or without prior disciplinary action.**
3. The apprentice, upon receipt of notification from the Training Director that he/she has allegedly violated apprenticeship policies, will contact the Training Director immediately.
  - a. If requested to appear at the JATC, the apprentice shall receive written notification by either regular mail or personal contact instructing him/her of the date, place, and time for his/her scheduled appearance and of the charges. Additionally, he/she is to bring any documentation in support of his/her answer to the charges.
  - b. The JATC will, through interview, supportive documentation, and review of the individual's entire record, consider appropriate action which may include the assessing of penalties.
  - c. If a penalty is assessed by the JATC and the penalty involves withholding a rerate, it will be implemented upon the next regularly scheduled upgrade due the apprentice. In cases involving penalties to be served at the Electrical Training Institute, this will be implemented as soon as possible after the action of the JATC.

**C. Use of Controlled Substances**

1. An apprentice found to be under the influence of any controlled illegal substance or alcohol while on the job or in school will be recommended for immediate dismissal from the program.
2. An apprentice taking medication under the supervision of a licensed physician which may impair his/her ability to perform his/her job safely should not attempt to work while under the influence of the medication.

**D. Felony Conviction**

A felony conviction during apprenticeship may be cause for automatic dismissal from the program.

**E. Termination from the Program**

Termination may result when an apprentice violates these rules, regulations and/or guidelines or other procedures established by the Committee, or for other reasons the Committee may deem reasonable.

**Any violation of the following will result in a penalty and may be grounds for immediate dismissal from the Electrical Training Institute and termination from the Apprenticeship Program.**

1. Theft or non-accidental damage to Training Trust Property.
2. Physical or verbal abuse of others or any threat of force.
3. Unauthorized entry or unauthorized use of Training Trust Property.
4. Engaging in lewd, indecent, or obscene behavior.
5. Possession or use of explosives or deadly weapons.
6. Failure to comply with directions of Training Trust officials acting in the performance of their duties.
7. Obstruction or disruption of the educational process.
8. Violation of any order of the Training Director or his/her designee or other Training Facility Official.
9. Soliciting or assisting another to do any act which would subject another to penalties under this code.
10. Attempting to do any of the above.

Penalties for any of the above as determined by the JATC and the Board of Trustees:

1. Warning
2. Probation
3. Suspension
4. Expulsion

#### **F. Termination Procedures**

Termination for violation may occur only after the following procedures have been followed:

1. Notification to the apprentice, in writing or personal contact, of the violation of the rules, regulations and/or guidelines.
2. The apprentice has had an opportunity to appear before the Committee to discuss the violation.

#### **G. Adjustment of Differences: Cancellation or Resignation of Apprenticeship Agreement**

1. The JATC shall have full authority and responsibility to review and shall seek to resolve all issues and/or disputes pertaining to all apprenticeship and training matters.
2. Apprenticeship agreements may be canceled at any time during the term of apprenticeship as follows. The apprenticeship agreement may be canceled at the request of the apprentice by submitting a formal request to resign. The apprenticeship agreement may be canceled or may be suspended for a specified period of time, canceled, or terminated by the JATC, for good cause, with due notice to the apprentice and a reasonable opportunity for corrective action. Written notice shall be provided to the apprentice and to the Registration Agency of any such action taken (probation extension, suspension, or cancellation).

Individuals who have been suspended or terminated from apprenticeship shall not be assigned by the JATC in any capacity. Furthermore, they are not eligible to participate in any related training activities and as per the CBA, they are not eligible for any job assignments under the CBA.

3. Apprentices shall have the right to request an appearance before the JATC concerning specific issues or matters dealing with their apprenticeship agreement. Such requests must be in writing.

## H. Complaint Procedure

In lieu of establishing a Complaint Review Body, the JATC will supply all apprentices with a copy of the Notice found in Appendix G of the Standards. The sponsor will provide all current information called for in the Notice.

The JATC has full authority to supervise the enforcement of the Standards and its Rules, Regulations and Guidelines. Its decision will be final and binding on the employer, the local union, and the apprentice, unless otherwise noted below.

If applicants or apprentices believe an issue exists that adversely affects their participation on the apprenticeship program or violates the provisions of the Apprenticeship Agreement, Standards or Rules, Regulations and Guidelines, relief may be sought through one or more of the following avenues, based on the nature of the issue:

1. For issues regarding wages, hours, working conditions, and other issues covered by the Collective Bargaining Agreement, apprentices may seek resolution through the applicable Grievance and Arbitration Articles of the collective bargaining agreement *after* first bringing documented evidence to the JATC.
2. The local JATC shall hear and consider all complaints of violations concerning the Apprenticeship Agreement and the registered Standards. The local JATC shall make such rulings as it deems necessary in each individual case. Either party to the Apprenticeship Agreement may consult with the Registration Agency for an interpretation of any provision of the Standards over which differences occur.
3. Any apprentice or applicant for apprenticeship who believes they have been discriminated, harassed or retaliated against on the basis of race, color, religion, national origin, or sex (including pregnancy and gender identity), gender expression, sexual orientation, genetic information, medical condition, marital status, political affiliation, ancestry, age (40 or older), military and veteran status or because they are an individual with a disability, or request for family care leave -except the applicant must meet the minimum age requirement-with regard to apprenticeship, or that the equal opportunity standards with respect to their selection have not been followed in the operation of the apprenticeship program, may contact directly the Federal, State or local Equal Employment Opportunity Commission (EEOC), and/or the U.S. Department of Labor, Office of Apprenticeship, or their local Registration Agency (see Appendix G to the Standards).

Complaints to the U.S. Department of Labor, which may be filed by the apprentice or through an authorized representative of the apprentice, must be filed not later than 300 days from the date of the alleged discrimination or specified failure to follow the equal opportunity standards. The complaint shall be in writing and shall be signed by the complainant. It must include the name,

address and telephone number of the person allegedly discriminated against, the Program Sponsor involved, and a brief description of the circumstances of the failure to apply the equal opportunity standard.

The Registration Agency will complete a thorough investigation of the complaint, including written notification of findings to the complainant and respondent. If the findings indicate discrimination, harassment or retaliation, the Registration Agency will attempt to resolve the matter. If the complaint cannot be resolved or if the Registration Agency otherwise deems it appropriate, the complaint shall be referred to other federal or state agencies with jurisdiction over the matter.

The JATC shall provide each applicant and apprentice with this complaint procedure and the names and addresses of the local, State and Federal contacts for receiving complaints (see Appendix G of the Standards). This procedure is also a part of the Affirmative Action Plan.

4. The Complaint Procedure shall be equitably applied to all applicants and apprentices.
5. When an apprentice's indenture (apprenticeship agreement) is terminated before satisfactory completion of their apprenticeship, the resulting vacancy may be filled by selecting and indenturing the next individual from the current eligibility list; provided all indentured apprentices who are available for on-the-job training assignments are so assigned. In the event that related instructional training classes are not available in the immediate future, the individual(s) indentured shall begin informational/awareness classes just as soon as possible. These courses may include topics such as: Industry Awareness, Communications, Productivity, Marketing, CPR, Tech Math, Safety Awareness and General Orientation.

## **I. RECORDKEEPING OBLIGATIONS OF THE JATC**

The JATC shall maintain records for a period of five (5) years and kept at: Joint Apprenticeship Training Center, 4675 Viewridge Avenue, San Diego, CA 92123. Records to be maintained include: (1) Records pertaining to the selection or rejection of applicants, such as applications, test results, and interview notes; (2) Invitations to self-identify as an individual with a disability; (3) Records pertaining to the operation of the program, including such information as job assignment, promotion, demotion, transfer, layoffs, terminations, rates of pay, compensation schedule, conditions of work, hours of on-the-job training and related instruction, and any other personnel records relevant to EEO complaints filed with any enforcement agency; (4) Records demonstrating compliance with the Department of Labor's Equal Employment Opportunity requirements; (5) Requests for reasonable accommodation; and (6) Records pertinent to a determination of compliance with the regulations under 29 CFR part 30. Records must be identifiable by race, ethnicity, sex, or disability status of each applicant. This DOES NOT include JATC Trust Fund records, which shall be maintained indefinitely.

All JATC records shall be made available upon request of the U.S. Department of Labor, Office of Apprenticeship, and the applicable Registration Agency. This provision DOES NOT include JATC Trust Fund records.

## **VI. SUMMARY**

All apprentices are subject to the above rules and regulations and are expected to fulfill their responsibilities as agreed to in the Apprenticeship Agreement.

This document shall rescind all previous Rules and Regulations signed by the apprentice.

*Your copy of the receipt acknowledgement and the index follow this page.*



## ACCEPTANCE AND RECEIPT OF COPY

*Read, sign, and return the loose copy of this page. **This copy** is for your records.*

I hereby grant permission to Palomar College to release my grades to the Electrical Training Institute and the San Diego Electrical Joint Apprenticeship Training Committee. I understand that these Rules, Regulations and Guidelines are supplemental to the Apprenticeship Standards and my Apprenticeship Agreement (DAS FORM 1) as approved by the Chief of the DAS. I also understand and agree that the JATC has the right to amend, modify or change these Rules, Regulations and Guidelines, upon review by the DAS, from time to time as the Committee deems necessary.

I have received a copy of the Electrical Training Institute and San Diego Electrical Joint Apprenticeship Training Committees' Rules, Regulations and Guidelines. I have read and do understand its contents and do agree to abide by them.

signed \_\_\_\_\_

date \_\_\_\_\_

April 2024